

have £800 for freeing the said Lewes, which sum was paid to the said Sir Thomas; and to prove this he produced Sir Thomas's letters, and the depositions of Lewes and others.

Coventrie, Crue, Hutton, Toppam, and others, of Counsel with the defendant, did not defend the offence nor extenuate it, but they confessed that it was an offence in Sir Thomas, who submitted himself in all humility to the Court; and they all affirmed that in the first place it was not an offence of such a nature and quality as to receive sentence here, for it was not extortion, and so it was pardoned by the Statute of 39 Elizabeth, if it be outside or after the pardon of 35 Elizabeth; and Sir Thomas craved the benefit of Her Majesty's gracious pardon. And that it is not extortion is thus proved: Firstly, the said Sir Thomas is not a Justice of the Peace, nor ever was, in the County of Monmouth, nor in any other County but in the County of Gloster only; and when one is of the Council of the Marches, their authority is only when they are appealed to and have instructions, and not otherwise; and Sir Thomas was never sworn, and so was not a Judge, Justice, or other officer in the County of Monmouth, and therefore no extortion. And also the said Sir Thomas took and received the money, not to his own use, but to give and pay it to others; and thus he disbursed it to the use of Lewis, and therefore no corruption or extortion in him. Also the said Lewis intended *bona fide* to intermarry with the daughter of the said Sir Thomas, and he was never indicted or arraigned for the felony, but Sir Thomas thought in his conscience that he was innocent, and not guilty of [the crime]; and also the wife of the murderer had the indictment against her husband removed into the Queen's Bench, where it was quashed for insufficiency; therefore the accessory cannot be indicted; for by law, where the principal is not *legitimo modo attinctus et convictus*, the accessory cannot be [put] in jeopardy of his life.

And firstly, as to whether it was extortion or not, the Court seemed to be of opinion that it was, and also that it was

[p. 96]
Extortion
and *quomodo*
pardoned.
The pardons
of 39 and 35
Elizabeth

Authority of
the Council
of the Welsh
Marches

Principal
not suffi-
ciently
convicted,
accessory is
acquitted